

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 6/5/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
10	30-2026-01542413 Christopher Paul Teague as Trustee of the Teague Family Trust dated August 5, 2010 as restated on August 17, 2018 vs. Rutledge	The Court has read and considered the Defendant, Stephanie Rutledge's, Motion to Seal Court Records (ROA 56). The Court take Judicial Notice of the Defendant's Ex Parte Application Motion to Set Aside Default (ROA 25), 3/13/2026 Minute Order (ROA 32), Ex Parte Application for Stay of Execution of Judgment (ROA 34), 3/17/2026 Minute Order (ROA 36), Motion to Vacate (ROA 40), 5/1/2026 Minute Order (ROA 50) and Judgment – Unlawful Detainer (ROA 19). In Ms. Rutledge's original Ex Parte Application (ROA 25), she alleged that she did not have notice of the eviction proceedings until the Sheriff's Department posted the lockout notice and that she was never served with the summons and complaint. On March 13, 2026, the Court denied Ms. Rutledge's Ex Parte because she failed to rebut the presumption under Evidence Code section 647 of proper service of the summons and complaint. In Ms. Rutledge's Motion to Vacate (ROA 40), she stated that she did receive the summons and complaint but "did not understand their legal significance or the requirement to file a formal written response within a specified time period." (#3 of Declaration of Stephanie Rutledge.)

		AB2819 was created to “strike a balance between the interests of protecting the credit records of innocent tenants and allowing landlords and others sufficient access to court records.” (AB 2819 Assembly Bill - Bill Analysis) California Rules of Court, Rule 2.550(d) allows the Court to seal a person’s record if the expressly finds: “(1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” Ms. Rutledge fails to establish that her circumstances are materially distinguishable from those commonly attendant to unlawful detainer proceedings. Inherent in an unlawful detainer judgment is a public record of the action, which prospective landlords may consider when evaluating rental applicants. The possibility that an eviction record could adversely affect future housing opportunities is not unique to Ms. Rutledge and, standing alone, does not constitute an overriding interest sufficient to justify sealing under California Rules of Court, rule 2.550(d). Accordingly, Ms. Rutledge has not demonstrated that her case presents the exceptional circumstances required to overcome the public's right of access to court records. The Court DENIES the Motion to Seal. Plaintiff is ordered to provide notice of the Court’s ruling.
11	30-2026-01553191 Mickle & Lucky Estates LLC vs. Lopez	The Court has read and considered the Defendant’s Motion to Vacate/Set Aside Judgment (ROA 32). The Court takes Judicial Notice of the Clerk’s Certificate of Mailing/Electronic Service (ROA 27), 5/26/2026 Minute Order (ROA 28), and Judgment – Unlawful Detainer (ROA 29). Ms. Lopez states in her Motion that she experienced unexpected transportation delays on the day of the hearing, May 26, 2026, and that she arrived at the courthouse as quickly as possible. The record reflects that her matter was not called until 10:56 a.m. on May 26, 2026. However, there is no indication that Ms. Lopez contacted the courtroom or otherwise attempted to notify the Court of her delay. Additionally, Ms. Lopez does not identify the nature of the alleged transportation issues or provide any documentation or other evidence to substantiate her claim. The Court further notes that Ms. Lopez appeared at the courthouse the following day, May 27, 2026, to file her Motion to Vacate. The Court DENIES the Motion to Vacate/Set Aside Default. The Court Clerk is to notify the Orange County Sheriff’s Department to proceed with the lockout forthwith.

		The Plaintiff is ordered to provide notice of the Court's ruling.
12	30-2026-01553559 Yamtoobian vs. Lawrence	The Court has read and considered the Defendant's Motion to Set Aside (ROA 29), Defendant's Declaration (ROA 35), Plaintiff's Opposition (ROA 37), and Plaintiff's Request for Judicial Notice (ROA 39). The Court takes Judicial Notice of the CP10.5 Prejudgment Claim of Right to Possession Form, Request to Waive Court Fees (ROA 13), Request for Entry of Default (ROA 17), Notice of Change of Address or Other Contact Information (ROA 27), Proof of Service of Summon & Complaint – Unnamed Occupants (ROA 26), Proof of Service of Summons (ROA 24), and Order to Service Summons by Posting (ROA 21). The Prejudgment Claim of Right to Possession Form states as follows: "9. I understand that if I make this claim of possession, I will be added as a defendant to the unlawful detainer (eviction) action. 10. (<i>Filing Fee</i>) I understand that I must go to the court and pay a filing fee of \$ _____ or file with the court an "Application for Waiver of Court fees and Cost." ... 12. I understand that I will have <i>five days</i> (excluding court holidays) to file a response to the Summons and Complaint after I file this Prejudgment Claim of Right to Possession form." Angelina Anderson filed a Prejudgment Claim of Right to Possession form with the Court on March 27, 2026, and was added as a defendant to this action. On the same date, Ms. Anderson filed a Request to Waive Court Fees with the Court. On April 8, 2026, Plaintiff's Counsel mailed Ms. Anderson a copy of the Request for Entry of Default (ROA 17). On May 7, 2026, Ms. Anderson filed a Notice of Change of Address or Other Contact Information with the Court. A party appearing in propria persona does not provide a basis for special treatment under the law; "such a party is to be treated like any other party and is entitled to the same but no greater consideration than other litigants and attorneys." (<i>Barton v. New United Motor Manufacturing, Inc.</i> (1996) 43 Cal.App. 4th 1200, 1210.) Additionally, the Court of Appeal held that a litigant in propria persona is subject to the same restrictive procedural rules as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) Ignorance of the law or a party's failure to exercise reasonable diligence generally does not constitute "excusable neglect" within the meaning of California Code of Civil Procedure section 473(b). Here, Defendant asserts that she "did not understand that I was required to respond within a shortened timeframe." However, the Prejudgment Claim of Right to Possession form expressly states in section 12: "I understand that I will have five days (excluding court holidays) to file a response to the Summons and Complaint after I file this Prejudgment Claim of Right to Possession form." Under these circumstances, Defendant's asserted misunderstanding of the response deadline does not establish excusable neglect. The Court DENIES the Defendant's Motion to Set Aside. The Writ of Possession is to issue forthwith. The Plaintiff is ordered to provide notice of the Court's ruling.

14	30-2026-01554359 Korth Family Limited Partnership vs. Zarate	The Court has read and considered the Plaintiff's Motion for Summary Judgment (ROA 47). A judge properly grants summary judgment when there are no triable issues of material facts and judgment is warranted as a matter of law. (California Code of Civil Procedure § 437c(c); <i>Bailey v. San Francisco District Attorney's Office</i> (2024) 16 Cal. 5th 611, 620.) The Plaintiff has the burden of establishing an unlawful detainer action for non-payment of rent pursuant to CCP 1161(2). Here, the Plaintiff established that it properly served a 3-day Notice to Pay or Quit on the Defendants on 3/5/2026, and the Notice to Pay or Quit contained all the required elements under CCP § 1161(2). The burden then shifts to the Defendants to establish any affirmative defenses to the unlawful detainer action. Based on the answers provided by the Defendants in the Request for Admissions Set One attached to the motion for summary judgment, there are no affirmative defenses the Defendants could establish under the law. Therefore, the Plaintiff has established there are no triable issues of material facts and judgment for the Plaintiff is warranted in this matter. The Court awards possession of the property located at 1295 E. Lincoln Ave., #28, Anaheim, CA 92805, County of Orange. The lease is forfeited. Judgment applies to all unknown occupants, subtenants, or claimants. The Court awards monetary damages to the Plaintiff as follows: Past Due Rent: \$2,025.00 Holdover Damages: \$3,982.50 (59 days at \$67.50 a day) As to attorney's fees and costs, in determining a reasonable fee award, the Court may consider the losing party's financial circumstances and whether the award would impose an undue hardship. (<i>Garcia v. Santana</i> (2009) 174 Cal.App.4th 464, 476–477.) In this case, the Court finds that the proceedings were not particularly complex. Defendants filed a demurrer and motion to strike concurrently, thereafter filed an answer, and the matter was ultimately resolved on Plaintiff's motion for summary judgment. The litigation did not involve extensive motion practice, discovery disputes, or other circumstances warranting a substantial fee award. The Court further notes that Defendants qualified for a waiver of court fees based on their financial circumstances. In addition, the amount of attorney fees requested, standing alone, is nearly twice the Defendants' monthly rental obligation. Considering the nature of the proceedings, Defendants' financial circumstances, and the totality of the circumstances presented, the Court finds that a reasonable award of attorney's fees and costs to Plaintiff is as follows: Attorney's Fees: \$1,200 Cost: \$602.70 Total Judgment: \$7,810.20 The Plaintiff is ordered to file a judgment form reflective of the Court's orders and serve notice of entry of judgment on the Defendants.
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15	30-2026-01569773 Bridge WF Ca Crystal View LP vs. Gomez	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 11) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Court takes Judicial Notice that the Defendant filed an Answer to the Complaint (ROA 20) on May 29, 2026. Plaintiff is ordered to give notice.
16	30-2026-01567419 Dao vs. Boyd	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 9), the Complaint (ROA 1), and the Plaintiff's Opposition to the Demurrer. The Court OVERRULES the Demurrer. The Defendant is to file an Answer within 5 calendar days.